

## Town and Country Planning Act 1990

# FULL PLANNING PERMISSION

| Agent/Applicant's Name & Address                                                                                   | Applicant's Name & Address                                                                        |
|--------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------|
| Mr. R. Shaw,<br>Third Revolution Projects,<br>Build Studios,<br>203 Westminster Bridge Road,<br>LONDON.<br>SE1 7FR | Hatton Solar Farms Limited,<br>Unit 1 and 2,<br>Tollgate Business Park,<br>Colchester,<br>CO3 8AB |

### Part I - Particulars of Application

|               |                    |
|---------------|--------------------|
| Date received | Application Number |
| 24/06/2022    | S/079/01078/22     |

Particulars and location of the development

- PROPOSAL: Planning Permission - Installation of a temporary ground mounted 49.9MW solar farm with associated infrastructure, construction of vehicular accesses, CCTV cameras on 2.5m high poles a 15m high communications tower and security fencing to a maximum height of 2.2m.
- LOCATION: LAND ADJACENT SOTBY WOODS, STURTON ROAD, HATTON

### Part II - Particulars of decision

In pursuance of its powers under the Town and Country Planning Act 1990, the East Lindsey District Council grants permission for the carrying out of the development referred to in Part I hereof in accordance with the application and plans submitted subject to the following conditions:

1. The development hereby permitted must be begun not later than the expiration of three years beginning with the date of this permission.

Reason: In order to comply with the requirements of Section 51 of the Planning and Compulsory Purchase Act 2004.

2. The development hereby permitted shall only be undertaken in accordance with the following approved plans;

|                      |                                    |
|----------------------|------------------------------------|
| Plan No. P044.220.02 | Received by the LPA on 01/06/2022. |
| Plan No. P044.300.00 | Received by the LPA on 01/06/2022. |
| Plan No. P044.307.00 | Received by the LPA on 01/06/2022. |
| Plan No. P044.303.01 | Received by the LPA on 10/06/2022. |
| Plan No. P044.304.00 | Received by the LPA on 10/06/2022. |
| Plan No. P044.305.00 | Received by the LPA on 10/06/2022. |
| Plan No. P044.306.00 | Received by the LPA on 10/06/2022. |
| Plan No. P044.308.00 | Received by the LPA on 10/06/2022. |
| Plan No. P044.309.00 | Received by the LPA on 10/06/2022. |

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|-----------------------|------------------------------------|
| Plan No. P044.310.00  | Received by the LPA on 10/06/2022. |
| Plan No. P044.311.00  | Received by the LPA on 10/06/2022. |
| Plan No. P044.312.00  | Received by the LPA on 10/06/2022. |
| Plan No. P000.301.01  | Received by the LPA on 24/06/2022. |
| Plan No. P044.307B.01 | Received by the LPA on 24/06/2022. |
| Plan No. P044.307C.01 | Received by the LPA on 24/06/2022. |
| Plan No. P044.301.03  | Received by the LPA on 02/02/2023. |
| Plan No. P044.302.02  | Received by the LPA on 02/02/2023. |

Reason: For the avoidance of doubt and the interests of proper planning.

3. Prior to the commencement of the development hereby permitted, the approval of the Local Planning Authority is required to a scheme of landscaping and tree planting for the site indicating, inter alia, the number, species, heights on planting and positions of all the trees, together with details of post-planting maintenance. The details shall include full details, including final minimum height of the hedge along the southern boundary. Such scheme as is approved by the Local Planning Authority shall be carried out in its entirety within the first planting season following the date on which development is commenced or in line with a phasing strategy agreed in writing by the Local Planning Authority. All trees, shrubs and bushes shall be maintained by the owner or owners of the land on which they are situated for a minimum of five years beginning with the date of completion of the scheme and during that period all losses shall be made good as and when necessary.

Reason: To ensure that appropriate landscaping is provided to integrate the site into the local area and also to preserve the setting of Corner Farm. This condition is imposed in accordance with SP10, SP11 and SP23 of the East Lindsey Local Plan.

4. No development shall take place until a written scheme of archaeological investigation has been submitted to and approved by the Local Planning Authority. This scheme should include the following:
  1. An assessment of significance and proposed mitigation strategy (i.e. preservation by record, preservation in situ or a mix of these elements).
  2. A methodology and timetable of site investigation and recording
  3. Provision for site analysis
  4. Provision for publication and dissemination of analysis and records
  5. Provision for archive deposition
  6. Nomination of a competent person/organisation to undertake the work

The scheme of archaeological investigation must only be undertaken in accordance with the approved details.

Reason: To ensure the preparation and implementation of an appropriate scheme of archaeological mitigation in accordance with paragraph 199 of the National Planning Policy Framework.

5. The archaeological site work must be undertaken only in full accordance

with the approved written scheme referred to in the above Condition. The applicant will notify the Local Planning Authority of the intention to commence at least fourteen days before the start of archaeological work in order to facilitate adequate monitoring arrangements. No variation shall take place without prior consent of the Local Planning Authority.

Reason: To ensure satisfactory arrangements are made for the recording of possible archaeological remains in accordance with paragraph 199 of the National Planning Policy Framework.

6. A report of the archaeologist's findings shall be submitted to the Local Planning Authority and the Historic Environment Record Officer at Lincolnshire County Council within 3 months of the works hereby given consent being commenced unless otherwise agreed in writing by the Local Planning Authority; and the condition shall not be discharged until the archive of all archaeological work undertaken hitherto has been deposited with the County Museum Service, or another public depository willing to receive it.

Reason: In order to ensure that satisfactory arrangements are made for the investigation, retrieval and recording of any possible archaeological remains on the site and in accordance with paragraph 199 of the National Planning Policy Framework.

7. The permitted development shall be undertaken in accordance with a surface water drainage scheme which shall first have been approved in writing by the Local Planning Authority.

The scheme shall:

- be based on sustainable drainage principles and an assessment of the hydrological and hydrogeological context of the development;
- provide flood exceedance routing for storm event greater than 1 in 100 year;
- provide details of how run-off will be safely conveyed and attenuated during storms up to and including the 1 in 100 year critical storm event, with an allowance for climate change, from all hard surfaced areas within the development into the existing local drainage infrastructure and watercourse system without exceeding the run-off rate for the undeveloped site;
- provide attenuation details and discharge rates which shall be restricted to 1.4 litres per second;
- provide details of the timetable for and any phasing of implementation for the drainage scheme; and
- provide details of how the scheme shall be maintained and managed over the lifetime of the development, including any arrangements for adoption by any public body or Statutory Undertaker and any other arrangements required to secure the operation of the drainage system throughout its lifetime.

No dwelling shall be occupied until the approved scheme has been completed or provided on the site in accordance with the approved phasing. The approved scheme shall be retained and maintained in full, in accordance with the approved details.

Reason: To ensure that the permitted development is adequately drained without creating or increasing flood risk to land or property adjacent to, or downstream of, or upstream of, the permitted development. This condition is imposed in accordance with SP16 of the East Lindsey Local Plan.

8. No development shall take place until a Construction Management Plan and Method Statement has been submitted to and approved in writing by the Local Planning Authority which shall indicate measures to mitigate against traffic generation and drainage of the site during the construction stage of the proposed development.

The Construction Management Plan and Method Statement shall include;

- phasing of the development to include access construction;
- the parking of vehicles of site operatives and visitors;
- loading and unloading of plant and materials;
- storage of plant and materials used in constructing the development;
- wheel washing facilities;
- the routes of construction traffic to and from the site including any off site routes for the disposal of excavated material and;
- strategy stating how surface water run off on and from the development will be managed during construction and protection measures for any sustainable drainage features. This should include drawing(s) showing how the drainage systems (permanent or temporary) connect to an outfall (temporary or permanent) during construction.

The Construction Management Plan and Method Statement shall be strictly adhered to throughout the construction period.

Reason: In the interests of highway safety and the amenities of local residents. This condition is imposed in accordance with SP10 and SP22 of the East Lindsey Local Plan.

9. No part of the development hereby permitted shall be occupied before the works to improve the public highway by means of road widening to all areas as shown on drawings LTP 4899 T2 00 01, T3 01 01, T1 01 04, 01 05, 01 06, 01 07 and 01 09 including 7 passing places to and from the substation and solar farm routes have been certified complete by the Local Planning Authority.

Reason: To ensure the provision of safe and adequate means of access to the permitted development in accordance with SP22 of the East Lindsey Local Plan.

10. Prior to the commencement of the development hereby permitted, full details of all mitigation measures to protect and enhance biodiversity at the site, based on the enhancement measures detailed in the Preliminary Ecological Appraisal dated December 2021 by James Blake Associates submitted with the application, shall be submitted to and agreed in writing by the Local Planning Authority. The details shall take the form of a Landscape

and Ecological Management Plan. The agreed protection and enhancement measures shall be incorporated into the development in accordance with a timetable agreed with the Local Planning Authority and retained in place in accordance with the details.

Reason: To protect and enhance biodiversity at the site in accordance with paragraph 174 of the National Planning Policy Framework.

11. The permission hereby given for the solar farm shall be for a limited period of 40 years from the date of the first export of electricity from the site, which date must be notified to the Local Planning Authority in writing within one month of the date. At the end of this period or upon cessation of the use for the generation of electricity, whichever is the sooner, all associated structures and equipment shall be fully removed from the application site and the site cleared, including of any below ground concrete. Within 3 months of clearance the land shall be restored to its former agricultural condition in accordance with a scheme of works which shall first have been submitted to and agreed in writing by the Local Planning Authority.

Reason: To ensure the land is returned to beneficial use at the end of the operational period in the interests of the visual amenities of the area and the good use of land having regard to Policies SP10, SP11, SP23 and SP27 of the East Lindsey Local Plan.

12. No external lighting shall be installed on site.

Reason: In the interests of the character and appearance of the development and in the interests of the amenity of local residents. This condition is imposed in accordance SP10 of the East Lindsey Local Plan.

13. Construction of the development hereby approved, including deliveries, must only be carried out between the hours of 08:00-17:00 Monday to Friday, 08:00 – 13:00 on Saturday and must not be carried out at any time on Sundays, Bank or Public Holidays.

Reason: In the interests of the amenity of local residents. This condition is imposed in accordance with SP10 of the East Lindsey Local Plan.

14. Prior to the commencement of the development hereby approved, a scheme for the management and protection of the soil on the site shall be submitted to and approved in writing by the Local Planning Authority. The soil shall be managed in accordance with the approved scheme for the lifetime of the development.

Reason: To ensure the soil is protected and managed appropriately so it retains its high land classification grade and that the land can be used for agriculture again once the solar farm has been removed from the site. This condition is imposed in accordance with paragraph 174 of the National Planning Policy Framework.

15. The Local Planning Authority have worked with the applicants and their

agent in a positive and proactive manner to seek solutions to issues arising, during consideration of the application and now consider the proposal is acceptable and there is compliance with the relevant Development Plan Policies cited above and also the National Planning Policy Framework.

#### **NOTES TO APPLICANT:**

1. The permitted development requires the formation of a new/amended vehicular access to the substation and solar farm. These works will require approval from the Highways Authority in accordance with Section 184 of the Highways Act. The works should be constructed in accordance with the Authority's specification that is current at the time of construction. Relocation of existing apparatus, underground services or street furniture will be the responsibility of the applicant prior to application. For application guidance, approval and specification details please visit <https://www.lincolnshire.gov.uk/licences-permits/apply-dropped-kerb> or contact [vehiclecrossings@lincolnshire.gov.uk](mailto:vehiclecrossings@lincolnshire.gov.uk)
2. Please contact the Lincolnshire County Council Streetworks and Permitting Team on 01522 782070 to discuss any proposed statutory utility connections and any other works which will be required within the public highway in association with the development permitted under this Consent. This will enable Lincolnshire County Council to assist in the coordination and timings of these works.

For further guidance please visit our website via the following links:

Traffic Management- <https://www.lincolnshire.gov.uk/traffic-management>

Licences and Permits - <https://www.lincolnshire.gov.uk/licences-permits>

3. In accordance with Section 59 of the Highways Act 1980, please be considerate of causing damage to the existing highway during construction and implement mitigation measures as necessary. Should extraordinary expenses be incurred by the Highway Authority in maintaining the highway by reason of damage caused by construction traffic, the Highway Authority may seek to recover these expenses from the developer.
4. The highway improvement works referred to in condition 9 are required to be carried out by means of a legal agreement between the landowner and the County Council, as the Local Highway Authority.

#### **Important Notes:-**

*All archaeological work undertaken as part of any archaeology condition must meet recognised CIfA professional standards for implementation and archiving as required by the relevant planning archaeologist and museum archive'.*

*It is the developers responsibility to ensure that their contractor meets professional standards. Failure to do so could result in an inability to discharge any archaeology conditions.*

Dated: 27/10/2023

Signed:

A handwritten signature in black ink, appearing to read 'MG', with a long horizontal flourish extending to the right.

Mike Gildersleeves  
Assistant Director - Planning

Tel. No. 01507 601111

EAST LINDSEY DISTRICT COUNCIL, THE HUB, MAREHAM ROAD, HORNCastle, Lincs. LN9  
6PH